

STEP ONE, ALWAYS: CHECK YOUR BCI RECORD - THE EXPUNGEMENT WAS PROBABLY ALREADY DONE

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

THE WORK IS PROBABLY ALREADY DONE. Section 12-1.3-5 entitles a person with a prior civil violation, misdemeanor conviction or felony conviction for POSSESSION ONLY of a marijuana offence since decriminalized to automatic expungement. Rhode Island completed the initial statewide effort in June 2023 - more than 23,000 records, being 3,015 in Superior Court, 9,952 in the Traffic Tribunal and 10,650 in District Court - over a year ahead of the statutory 1 July 2024 deadline. Nothing is filed and nothing is paid in the ordinary case.

SO THE FIRST STEP IS TO CHECK, NOT TO FILE. Request your criminal history record from the Rhode Island Department of Attorney General, Bureau of Criminal Identification (BCI). Then look for the marijuana case:

- IF THE CASE NO LONGER APPEARS: the expungement reached it. You are done, and nothing in this packet is for sending.

- IF THE CASE STILL APPEARS: go to the expedited-request pages of this packet. Only your own BCI record can establish this - this packet does not certify that the automatic relief failed, and neither does anyone else on your behalf.

THE CONDITIONS, STATED HONESTLY. Possession only, and since decriminalized, are the conditions. Possession with intent to distribute and distribution charges are not covered. Non-marijuana counts in the same case are not cleared by this section, though they do not block expungement of the eligible marijuana count. Federal, out-of-state, military and tribal records are not reached.

ONE DEFINITION THAT REACHES MORE PEOPLE THAN THE WORD SUGGESTS. The section's definition of conviction includes a plea of nolo contendere with a jail or suspended jail sentence, and a deferred sentence agreement with the Attorney General whose period of deferment has not been completed. If either is your situation, you are inside this section even if you would not call yourself convicted.

Routes: obligation:unit:RI:ri_marijuana:ri-marijuana-automatic-verification ;
obligation:unit:RI:ri_marijuana:ri-marijuana-expedited-written-request

WHAT SECTION 12-1.3-5 DOES, EXACTLY

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THE AMOUNT. Where the record does not state how much marijuana was involved, the court presumes two ounces or less.

WHAT DOES NOT BLOCK THE RELIEF. Pending cases, prior convictions and violent convictions do not block it. Outstanding fines, fees and costs do not block it, and eligible marijuana-related amounts are waived.

MONEY. No fee. Eligible marijuana-related fines, fees and costs are waived, and under Sec. 12-1.3-5(e) anyone who was incarcerated for misdemeanor or felony marijuana possession has ALL court costs waived with respect to expungement.

OTHER COUNTS. Other, non-marijuana counts in the same case are unaffected: they neither block the marijuana count's expungement nor get cleared by it.

LATER SENTENCING. A marijuana expungement under this section is not treated as a prior conviction or civil adjudication for sentencing on a later offence.

WHO DELIVERS THE ORDER. Under Sec. 12-1.3-5(f) the COURT sends a copy of the expungement order to the Attorney General, the arresting agency and any other agency known to hold records. You do not deliver certified copies on this track - that duty belongs to other Rhode Island routes, not this one.

WHO MAY LEARN THE RECORDS EXIST. Under Sec. 12-1.3-5(m), custodians may not disclose the existence of the records on inquiry from any source, except from you yourself, a bar admission or character and fitness or disciplinary body, the commissioner of elementary and secondary education, or a law enforcement agency where the nature of a new charge would be affected.

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ONLY IF THE RECORD DID NOT CLEAR: THE EXPEDITED WRITTEN REQUEST STAGE

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USE THESE PAGES ONLY IF your own BCI criminal history shows the marijuana case still appears. The statute makes an expedited procedure available on written request, so the request page of this packet is a signed letter to the court in which the marijuana case was heard.

BEFORE YOU SIGN IT, CONFIRM FROM YOUR OWN BCI RECORD that the case still appears and has not been expunged. The request states that confirmation as YOUR statement, from your record - not as anyone's certification on your behalf.

WHAT THE REQUEST DOES NOT DO. It does not decide disputed eligibility, invent supporting evidence, seek anyone's agreement, promise expedited treatment, or argue your case. If possession-only status or the amount is disputed, stop and get help instead of sending it.

Routes: obligation:unit:RI:ri_marijuana:ri-marijuana-automatic-verification ;
obligation:unit:RI:ri_marijuana:ri-marijuana-expedited-written-request

EXPEDITED WRITTEN REQUEST FOR EXPUNGEMENT UNDER R.I. GEN. LAWS SEC. 12-1.3-5

(Send this request ONLY where your own BCI criminal history shows the marijuana case still appears. If it has cleared, the work is done and there is nothing to send.)

TO: the

(name the court in which the marijuana case was heard - Superior Court, District Court, or the Traffic Tribunal)

FROM: Maria-Alejandra O'Shaughnessy-Whitfield

1188 Upper Notch Crossing Road, Apartment 14B, Woonsocket, Rhode Island 02895-2214

Telephone: (401) 555-0199 ext. 4417

Email: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

RE: EXPEDITED WRITTEN REQUEST FOR EXPUNGEMENT UNDER R.I. GEN. LAWS Sec. 12-1.3-5

To the court:

1. I, Maria-Alejandra O'Shaughnessy-Whitfield, make this request under the expedited procedure R.I. Gen. Laws Sec. 12-1.3-5 makes available on written request.

2. The marijuana case this request concerns:

Case number or citation number, as it appears on your records, if one appears:

.....

Year of the case, approximately:

.....

How the case ended - a civil violation, a conviction, a plea of nolo contendere with a jail or suspended jail sentence, or a deferred sentence agreement whose period of deferment has not been completed:

.....

Amount of marijuana stated in the record, if the record states one (where it does not, Sec. 12-1.3-5 presumes two ounces or less):

.....

3. The charge was possession of marijuana only. (If that is not true of your charge, do not send this request - possession with intent to distribute and distribution charges are outside Sec. 12-1.3-5.)

4. I have checked my criminal history record from the Bureau of Criminal Identification and the case identified above still appears on it. (Sign only if you have actually checked; your signature makes this your own statement from your own record.)

5. I therefore request that the record of the eligible marijuana possession matter identified above be expunged as Sec. 12-1.3-5 provides.

DATE SIGNATURE

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

(You sign and date this request personally. Nothing on this page is signed or dated for you. No fee is enclosed and none is owed: eligible marijuana-related fines, fees and costs are waived under the section.)

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SENDING THE REQUEST, AND WHAT HAPPENS AFTER

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HOW TO SEND IT. Sign and date the request yourself, keep a copy of everything, and send the request to the court in which the marijuana case was heard - the same court you named at the top of the request page.

NOTHING TO PAY. No fee accompanies the request: eligible marijuana-related fines, fees and costs are waived, and anyone who was incarcerated for marijuana possession has all court costs waived with respect to expungement under Sec. 12-1.3-5(e).

AFTER THE COURT ACTS. Under Sec. 12-1.3-5(f) the court sends a copy of any resulting order to the Attorney General, the arresting agency and any other agency known to hold records. You do not deliver certified copies on this track.

IF THE COURT DENIES THE REQUEST, OR DOES NOT ANSWER. Stop. The statute identifies no remedy and no appeal route for the expedited procedure, so escalate to a lawyer or a legal-aid office rather than re-filing.

WHEN TO STOP AND GET HELP INSTEAD:

- the case had non-marijuana counts you also want cleared - this section reaches only the eligible marijuana count;
- the charge was possession with intent to distribute, or distribution;
- there is any dispute about whether the offence was possession only, or about the amount involved;
- the record is federal, out-of-state, military or tribal.

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obligation:unit:RI:ri_marijuana:ri-marijuana-expedited-written-request